THE HON'BLE SRI JUSTICE M.VENKATA RAMANA

TRANSFER CIVIL MISCELLANEOUS PETITION No.2 of 2021

ORDER:

Heard Sri N.Siva Reddy, learned counsel for the petitioner.

2. This petition is filed for transfer of HMOP No.98 of 2020 from the file of the Court of learned II Additional Senior Civil Judge, Tenali, Guntur District on to the file of the Court of learned III Additional Senior Civil Judge, Kakinada, East Godavari District to try along with HMOP No.91 of 2020.

3. The petitioner is the wife of the respondent. Their marriage was celebrated on 14.02.2020 at Kolluru, Guntur District, as per applicable rites and customs. On account of disputes in between these parties, the details of which are not relevant for the present purpose, they have been living separately. The petitioner is a resident of Kakinada and whereas, the respondent is residing at Kolluru, Guntur District.

4. The petitioner instituted HMOP No.91 of 2020, which is now pending on the file of the Court of learned III Additional Senior Civil Judge, Kakinada, under Section 12 of the Hindu Marriage Act, for dissolution of their marriage. The petitioner also states that she gave a complaint against respondent and others in Sarpavaram Police Station, Kakinada, where Crime No.332 of 2020 is registered for the offences under Sections 498-A, 420 and 506 r/w 34 IPC. Apart from it, she also gave a complaint for domestic violence and DVC No.7 of 2020 is pending on the file of the Court of learned V Additional Judicial

Magistrate of First Class, Kakinada, against the respondent and his family members, in this context.

5. Now, the contention of the petitioner is that as a counter-blast to her petition for dissolution of marriage, the respondent instituted HMOP No.98 of 2020 on the file of the Court of learned II Additional Senior Civil Judge, Tenali, for restitution of conjugal rights.

6. The petitioner states that it is difficult for her to attend the Court at Tenali, on account of distance of 250 k.m between Kakinada and Tenali and that she is apprehending threat her life, if she attended the Court at Tenali, since the respondent and his family are quite influential. She pointed out that the respondent, at any rate is attending the Courts at Kakinada in other matters and therefore, if the present matter pending at Tenali is brought to Kakinada, he would not suffer any inconvenience.

7. Considering the reasons assigned by the petitioner in support of this petition, which are adverted to by Sri N.Siva Reddy, her learned counsel, it is clear that the balance of convenience lies more in favour of the petitioner than the respondent. He would not suffer any prejudice or difficulty, if the matter from Tenali is transferred to Kakinada in as much as, he is also appearing in other matters in between these parties in different Courts at Kakinada.

8. In the above circumstances, the request of the petitioner has to be accepted and this petition has to be allowed.

9. In the result, this Tr.C.M.P is allowed directing withdrawal of HMOP No.98 of 2020 now pending on the file of the Court of learned II Additional Senior Civil Judge, Tenali, Guntur District and is transferred on to the file of the Court of learned III Additional Senior Civil Judge, Kakinada, East Godavari District, for disposal in accordance with law. The parties if so desire, can apply to the above Court for consolidation this matter and another pending matter by an appropriate application. It shall be considered by the above Court at Tenali in accordance with law. No costs.

10. Interim orders granted earlier if any, stand vacated.

11. Miscellaneous applications pending if any, shall stand closed.

M.VENKATA RAMANA, J

Date: 26.02.2021

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